STATE OF MINNESOTA | DISTRICT COURT

COUNTY OF HENNEPIN | FOURTH JUDICIAL DISTRICT
Case Type: Other Contracts

Yibiao Lu and Jie Hu, Plaintiffs, vs. Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, doing business as Farmers Insurance, Defendant.	Case Type: Contract Court File No. 27-CV-26-11606 Judge: Jamie Anderson **DEFENDANT'S SUPPLEMENTAL RESPONSE TO PLAINTIFFS' FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS**

TO: Plaintiffs Yibiao Lu and Jie Hu, 17756 George Moran Drive, Eden Prairie, MN 55347:

Defendant, Fire Insurance Exchange's (hereinafter "FIE") submits this Supplemental Response to Request for Production of Documents from Plaintiffs, Yibiao Lu and Jie Hu (hereinafter "Plaintiffs") as follows:

REQUEST NO. 1: The entire claim file for The Claim (claim number 7007986837-1-1), including every document, photograph, audio file, video file, item of ESI, system or case note, audit-log entry, billing record, and internal communication of any kind.

RESPONSE: FIE objects to Request No. 1 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced in the link below. Due to technical difficulties, Defendant will supplement its document production with the redacted Full Claim file/Claim notes as soon as possible.

SUPPLEMENTAL RESPONSE: FIE incorporates all of its objections to Response No. 1. Notwithstanding and without waiving said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE

1804 -FIE 2340), which includes, but is not limited to, Claim Notes (redacted), the Full Claim File (redacted), and privilege log.

REQUEST NO. 15: All correspondence with the appraisal panel — Greg Tomes, John Foster, and umpire Wade Roos — including engagement letters, scoping communications, methodology communications, and post-award correspondence.

RESPONSE: FIE objects to Request No. 15 to the extent that it seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

SUPPLEMENTAL RESPONSE: FIE incorporates all of its objections to Response No. 15. Notwithstanding and without waiving said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE 1804 -FIE 2340), which includes, but is not limited to, Claim Notes (redacted), the Full Claim File (redacted), and privilege log.

REQUEST NO. 16: All documents in Your possession, custody, or control that You sent to or received from umpire Wade Roos, or that constitute any portion of his working file for the September 12, 2025 appraisal, including notes, calculations, photographs, measurements, drafts, worksheets, invoices, and communications. If You possess no report, estimate, worksheet, calculation, or methodology document from Mr. Roos supporting the $12,800 Replacement Cost Value or the $6,400 Actual Cash Value, state that expressly in Your response.

RESPONSE: FIE objects to Request No. 16 to the extent that it seeks proprietary or confidential documents, to the extent that is seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

SUPPLEMENTAL RESPONSE: FIE incorporates all of its objections to Response No. 16. FIE also objects to this request to the extent that it seeks documents from a third-party over whom FIE has no control. Notwithstanding and without waiving said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE 1804 -FIE 2340), which includes, but is not limited to, Claim Notes (redacted), the Full Claim File (redacted), and privilege log. See Appraisal Award. FIE does not possess additional responsive documents.

REQUEST NO. 17: All documents in Your possession, custody, or control constituting or relating to the appraiser file of Greg Tomes, including his notes, photographs, measurements, methodology, drafts, invoices, and billing records; the report of Greg Tomes referred to in Your answer to paragraph 36 of the Complaint, the "appraiser's position" on the windows that You forwarded to Plaintiff Lu on September 18, 2025, the "appraiser's response" attached to Your September 19, 2025 letter, and every draft of each; all communications between You and Mr. Tomes concerning The Claim or the appraisal, including all communications concerning the scope of the appraisal and the items to be evaluated; the agreement or engagement under which he was appointed; and all documents reflecting his reasons for not signing The Appraisal Award. If You contend any responsive document is not within Your possession, custody, or control, identify it and identify the person who has it. Plaintiffs contend that documents held by Greg Tomes in connection with his appointment as Your appraiser are within Your possession, custody, or control within the meaning of Minn. R. Civ. P. 34.01. If You disagree, state the basis for that position and produce the retention agreement, engagement letter, appointment documents, and any service or fee agreement governing Your access to those documents.

RESPONSE: FIE objects to Request No. 17 to the extent that it is overly broad and vague, duplicative, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, to the extent that Plaintiffs possess the requested documents, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

<u>SUPPLEMENTAL RESPONSE</u>: FIE incorporates all of its objections to Response No. 17. Notwithstanding and without waiving said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE 1804 -FIE 2340).

REQUEST NO. 20: The complete claims-portal record for The Claim, including all messages, document uploads, and status entries.

RESPONSE: FIE objects to Request No. 20 to the extent that it seeks attorney-client or privileged work product prepared in anticipation of litigation, to the extent that is seeks proprietary or confidential documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

<u>SUPPLEMENTAL RESPONSE</u>: FIE incorporates all of its objections to Response No. 20. FIE also objects to the extent that the "complete claims-portal record" is not defined and FIE does not know what Plaintiffs are referring to. Notwithstanding and without waiving

said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE 1804 -FIE 2340), which includes, but is not limited to, Claim Notes (redacted), the Full Claim File (redacted), and privilege log.

REQUEST NO. 21: The complete audit trail for The Claim file, including every entry, edit, deletion, or supplementation, with the timestamp and user for each, together with documents sufficient to describe the audit-logging, versioning, and deletion-tracking capabilities of each system in which The Claim was maintained, and the retention period applicable to those logs.

RESPONSE: FIE objects to Request No. 21 to the extent that it is overly broad and vague, does not define "audit trail," to the extent that is seeks proprietary or confidential documents or attorney or work product privilege documents, to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via a binding appraisal award and documents regarding the appraisal and award were produced with FIE's Initial Disclosures), to the extent that is it not proportional to the needs of the case, and to the extent that the burden or expense of the proposed discovery outweighs its likely benefit. Notwithstanding and without waiving said objections, see the documents produced with FIE's Initial Disclosures and those produced herewith.

SUPPLEMENTAL RESPONSE: FIE incorporates all of its objections to Response No. 21. Notwithstanding and without waiving said objections, see documents previously produced, (FIE 0001-FIE 1803) and the supplemental document production produced herewith (FIE 1804 -FIE 2340), which includes, but is not limited to, Claim Notes (redacted), the Full Claim File (redacted), and privilege log.

All documents referenced herein can be accessed via the following link:

05490-Lu and Hu v. FIE (FIE 1804-2340) Link Expires 2-11-27

KENNEDY LAW FIRM P.C.

Dated: November 5, 2026

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